



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 1, 2024

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202207555 (Incident Date: November 6, 2022) regarding Police Officer Debbie Jimenez, Tax No. 959954 (DADS No. 2024-30006)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in connection with CCRB Case No. 202207555, pertaining to Police Officer Debbie Jimenez. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that disciplinary action is not warranted in connection with the substantiated allegations.

In this case, Officer Jimenez was performing patrol with her partners when they observed a vehicle traveling on East 116th Street with heavily tinted windows and a broken taillight. The officers conducted a vehicle stop for the traffic infractions and later determined that the operator of the vehicle was driving with a suspended license. After receiving voluntary consent from the operator, the officers searched the vehicle with negative results. The officers subsequently exercised their discretion and released the motorist with a warning. The officers did not offer the motorist or the passenger of the vehicle business cards.

The CCRB substantiated three allegations against Officer Jimenez including searching a vehicle without sufficient legal authority and failing to offer business cards when required. In addition to the CCRB's investigation into this matter, the Department also conducted a parallel investigation due to other allegations outside of the CCRB's jurisdiction. That internal investigation exonerated the officers on the allegation of the wrongful search of the vehicle, substantiated the allegations that they failed to provide business cards to the individuals, and did not investigate the discourtesy allegation.

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At the conclusion of that internal investigation, Officer Jimenez was issued a Schedule "A" Command Discipline for the business cards allegations.

After considering the facts and circumstances surrounding the search and business cards allegations, the Police Commissioner has determined that the vehicle search was lawful and within guidelines but the officers' failure to provide business cards was a violation of Department rules. Therefore, the Police Commissioner intends to impose no disciplinary action for the allegation of an improper search. Furthermore, as Officer Jimenez already received a Schedule "A" Command Discipline for the allegations pertaining to the failure to provide business cards, the Police Commissioner will issue no further discipline regarding those substantiated allegations.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino", with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office